

Court No. - 29

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Mahboob Ahmad, Vinay Kumar Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Connect with Writ Petition No. 26316 of 2008.

List this matter on 20.7.2016. Counter affidavit may be filed by then.

In the meanwhile, the demand raised by the respondents to deposit additional security shall remain stayed.

Order Date :- 12.7.2016

Kuldeep

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath
Singh, Mahboob Ahmad, Vinay Kumar Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

List on 27th July 2016 showing the name of Sri
S.S.A. Kazmi as counsel for the respondents.

Order Date :- 20.7.2016

YK

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

One week further time is allowed to file a counter affidavit.

List on 04.08.2016.

Order Date :- 27.7.2016

MAA/-

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath
Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Counter affidavit filed today is taken on record.

Two weeks time is allowed to the petitioner to file rejoinder affidavit.

List on 22nd August, 2016 along with all the connected writ petitions.

The learned counsel for the electricity department shall supply a list of all the connected cases within three days to the Reader of the Court.

Order Date :- 4.8.2016

Bhaskar

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Rejoinder affidavit filed today is taken on record.

One week's and no more time is allowed to Uttar Pradesh Electricity Regulatory Commission-respondent no.2 to file counter affidavit. The said counter affidavit shall be served upon the learned counsel for the petitioner on or before 30.8.2016.

One week's thereafter is allowed to the petitioner to file rejoinder affidavit.

We find that in some of the matters which are connected to the present writ petition, notices have been issued to the Advocate General since the vires of Act has been challenged. We issue fresh notice in the present case to Advocate General. Registry to do needful within three days.

List on 12.9.2016 along with Writ - C Nos. 43757 of 2014, 29954 of 2015, 43770 of 2015, 45438 of 2015, 63326 of 2015, 67171 of 2015, 67682 of 2015 and 44732 of 2015.

The registry will indicate in the notice to the Advocate General that the case would be listed for hearing on 12.9.2016.

Order Date :- 22.8.2016

Kuldeep

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

In spite of a stop order no counter affidavit has been filed by the Uttar Pradesh Electricity Regulatory Commission, respondent no.2. Registry has not reported as to whether notice has been issued to the Advocate General or not.

Three days further time is given to the Registry to send notices to the Advocate General indicating that vires of sub-clause (1) of clause 4.20 of the Electricity Supply Code, 2005 is being challenged.

Since the vires of sub-clause (1) of clause 4.20 of the Electricity Supply Code 2005 has been challenged, the Registry is directed to list this matter after two weeks before the appropriate Court along with connected Writ Petition Nos. 73762 of 2005, 70332 of 2005, 37986 of 2007, 29674 of 2007, 64010 of 2007, 74540 of 2005, 62018 of 2006, 32995 of 2006, 47440 of 2006, 36931 of 2006, 36932 of 2006, 47439 of 2006, 69116 of 2013, 29082 of 2013, 70079 of 2011, 72518 of 2011, 32247 of 2007, 48311 of 2006, 20102 of 2008, 43171 of 2008, 73471 of 2005, 74213 of 2005, 69598 of 2013, 24680 of 2014, 44757 of 2008, 50397 of 2006, 40676 of 2007, 34999 of 2013, 45532 of 2008, 41108 of 2007, 27245 of 2007, 25604 of 2007, 44352 of 2005,

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33022 of 2006, 67346 of 2005, 42828 of 2006, 42851 of 2006, 26525 of 2009, 31289 of 2009, 53037 of 2004, 30751 of 2009, 30753 of 2009, 30754 of 2009, 30755 of 2009 and 30756 of 2009 and other connected writ petitions which are listed today.

Order Date :- 12.9.2016

AKJ

(Vipin Sinha,J.)

(Tarun Agarwala,J.)

Chief Justice's Court

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

S.O. to 21 February 2017 at 3.00 p.m. alongwith connected cases.

Order Date :- 15.2.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Chief Justice's Court

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

At the request of learned counsel for the parties, S.O. to 28.2.2017, as fresh matter, as first case, alongwith connected matters.

Order Date :- 27.2.2017

RKK/-

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

Chief Justice's Court

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Amrendra Nath

Singh, Mahboob Ahmad, S.S.A. Kazmi, Vinay Kumar Singh

With

Writ-C Nos. 28797 of 2016, 1281 of 2016, 2271 of 2016, 31371 of 2016, 56475 of 2014, 63623 of 2014, 28780 of 2016, 58725 of 2014, 58043 of 2014, 55427 of 2014, 56478 of 2014, 55362 of 2014, 35908 of 2016, 26316 of 2008, 1667 of 2015, 1669 of 2015, 34862 of 2009, 22286 of 2016, 52886 of 2004, 42752 of 2004, 1541 of 2006, 31394 of 2009, 2432 of 2006, 27736 of 2006, 53044 of 2004, 29673 of 2007, 34247 of 2006, 61389 of 2010, 61387 of 2010, 61781 of 2010, 30484 of 2009, 30457 of 2009, 30754 of 2009, 30753 of 2009, 30751 of 2009, 52897 of 2004, 39838 of 2007, 28491 of 2007, 28492 of 2007, 51511 of 2007, 619 of 2005, 24221 of 2005, 24225 of 2005, 24228 of 2005, 31769 of 2007, 58426 of 2005, 59027 of 2005, 61779 of 2010, 37613 of 2009, 30584 of 2009, 30580 of 2009, 30458 of 2009, 37663 of 2009, 31361 of 2009, 26524 of 2009, 57682 of 2005, 57714 of 2005, 58425 of 2005, 58337 of 2005, 44352 of 2005, 56776 of 2005, 55276 of 2005, 61972 of 2005, 62047 of 2005, 65885 of 2005, 67140 of 2005, 67141 of 2005, 67281 of 2005, 67341 of 2005, 30132 of 2007, 49797 of 2007, 49799 of 2007, 49791 of 2007, 49792 of 2007, 49795 of 2007, 49788 of 2007, 62228 of 2008, 52596 of 2008, 62234 of 2008, 10753 of 2010, 26920 of 2009, 52911 of 2010, 51608 of 2010, 19564 of 2010, 19566 of 2010, 30755 of 2009, 32366 of 2009, 38965 of 2009, 48280 of 2006, 48543 of 2006, 48569 of 2006, 52000 of 2006, 61782 of 2008, 58456 of 2006, 53238 of 2006, 53046 of 2004, 61770 of 2005, 66722 of 2005, 43757 of 2014, 43770 of

2015, 45438 of 2015, 44732 of 2015, 34994 of 2013, 35004 of 2013, 35159 of 2013, 35305 of 2013, 35396 of 2013, 35397 of 2013, 35399 of 2013, 34868 of 2013, 34862 of 2013, 46751 of 2013, 46848 of 2013, 46849 of 2013, 32006 of 2016, 67682 of 2015, 63326 of 2015, 33733 of 2014, 33464 of 2014, 30363 of 2014, 33736 of 2014, 33734 of 2014, 30987 of 2014, 29564 of 2014, 29265 of 2014, 28910 of 2014, 26315 of 2008, 25088 of 2014, 67346 of 2005, 43171 of 2008, 69598 of 2013, 44757 of 2008, 25604 of 2007, 32059 of 2014, 44549 of 2016, 55137 of 2016, 2275 of 2017 and 3472 of 2017.

Hon'ble Dilip B. Bhosale, Chief Justice
Hon'ble Yashwant Varma, J.

Heard Mr. B.C. Rai, Mr. Mayank Agrawal, Mr. Ranjeet Saxena and Mr. Anoop Trivedi, learned counsel for the petitioners and Mr. Amrendra Nath Singh and Mr. S.S.A Kazmi, learned counsel for the respondents.

Judgement is reserved.

A photocopy of this order, duly authenticated by the Bench Secretary, shall be placed on the record of the connected writ petitions.

Office to proceed in terms of the photocopy of the order, which stands placed on the record.

Order Date :- 28.2.2017
VMA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)

RESERVED
AFR

Case :- WRIT - C No. - 30898 of 2016

Petitioner :- M/S Dev Prayag Paper Mill (Pvt.)

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh,Mahboob Ahmad,S.S.A.Kazmi,Vinay Kumar Singh

WITH

Case :- WRIT - C No. - 28797 of 2016

Petitioner :- M/S Juneja Electrode Industries And 16 Ors.

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd. And Anr.

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Nripendra Mishra

WITH

Case :- WRIT - C No. - 1281 of 2016

Petitioner :- Rajiv Kumar

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal,Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 2271 of 2016

Petitioner :- M/S Mangalam Ice Factory And 2 Others

Respondent :- U.P.P.C.L. And 2 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Baleshwar Chaturvedi,S.C.

WITH

Case :- WRIT - C No. - 31371 of 2016

Petitioner :- M/S Classic Udyog And 7 Ors.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Anr.

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Nripendra Mishra

WITH

Case :- WRIT - C No. - 56475 of 2014

Petitioner :- Laxmi Steel Rolling Mills Thru' Partner Suresh Chandra

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Gopal Krushna, Dinesh Kumar Chadha

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 63623 of 2014

Petitioner :- Anil Kumar Agrawal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 28780 of 2016

Petitioner :- M/S Rajdeep Electrode And 6 Ors.

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd. And Anr.

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Nripendra Mishra

WITH

Case :- WRIT - C No. - 58725 of 2014

Petitioner :- M/S Manohari Electrodes Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Nripendra Mishra

WITH

Case :- WRIT - C No. - 58043 of 2014

Petitioner :- M/S Shankar Tala Bhandar Thru' Power Of Attorney

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Aishwarya Pratap Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 55427 of 2014

Petitioner :- M/S S N Polyflex (P) Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd & 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 56478 of 2014

Petitioner :- Bhole Concasts Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Gopal Krushna, Dinesh Kumar Chadha

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 55362 of 2014

Petitioner :- M/S Vehlina Steels & Alloys Pvt. Ltd. Thru' Auth. Sign.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.K. Saxena, A.N. Singh

WITH

Case :- WRIT - C No. - 35908 of 2016

Petitioner :- M/S Modinagar Paper Mills Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Chandan Agarwal, Amrendra Nath Singh

WITH

Case :- WRIT - C No. - 26316 of 2008

Petitioner :- M/S K.K. Duplex & Paper Mills Pvt Ltd And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Seema Agrawal, Mayank Agrawal

Counsel for Respondent :- A.N. Singh, H.P. Dube

WITH

Case :- WRIT - C No. - 1667 of 2015

Petitioner :- M/S Amritvarsha Industries & Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Chandan Agrawal,A.N. Singh

WITH

Case :- WRIT - C No. - 1669 of 2015

Petitioner :- M/S N.P. Agro (I) Industries Ltd. Thru' Director S. Jhawar

Respondent :- Madyanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shivam Yadav,A.N. Singh

WITH

Case :- WRIT - C No. - 34862 of 2009

Petitioner :- M/S Rana Steels Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh,Sc.

WITH

Case :- WRIT - C No. - 22286 of 2016

Petitioner :- M/S Parmarth Industries (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

WITH

Case :- WRIT - C No. - 52886 of 2004

Petitioner :- M/S K.L. Rathi Steels Ltd. Thru' Director & Another

Respondent :- State Of U.P. Thru' Secy. Energy Deptt. & Ors.

Counsel for Petitioner :- Anubhav Trivedi,Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,W.H. Khan

WITH

Case :- WRIT - C No. - 42752 of 2004

Petitioner :- M/S Amba Steels Thru' Director & Another

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. Thru' M.D. & Ors.

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,S.C.

WITH

Case :- WRIT - C No. - 1541 of 2006

Petitioner :- M/S Mahehswari Roller Flour Mills Pvt. Ltd. And Another

Respondent :- Pashcimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Seema Agrawal, Mayank Agarwal

Counsel for Respondent :- A.S.G.I. 2006/66, W.H. Khan

WITH

Case :- WRIT - C No. - 31394 of 2009

Petitioner :- Awtar Singh

Respondent :- State Of U.P. Thru' Secy. & Others

Counsel for Petitioner :- S.K. Pandey, R.K. Pandey

Counsel for Respondent :- C.S.C., Mridul Tripathi

WITH

Case :- WRIT - C No. - 2432 of 2006

Petitioner :- M/S Jalan Concast Ltd.

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Hare Krishna Mishra, Vishal Dixit

Counsel for Respondent :- C.S.C., Mahboob Ahmad, W.H. Khan

WITH

Case :- WRIT - C No. - 27736 of 2006

Petitioner :- M/S Kirti Paper Manufacturing Co. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Seema Agrawal, Mayank Agrawal

Counsel for Respondent :- A.S.G.I. 2006/1265, Dr. A.K. Nigam, J.P. Singh, W.H. Khan

WITH

Case :- WRIT - C No. - 53044 of 2004

Petitioner :- M/S Rathi Industries Thru' Auth. Signatory

Respondent :- State Of U.P. Thru' Secy. Energy Deptt. & Ors.

Counsel for Petitioner :- Krishna Agrawal, Anubhav Trivedi, B.C. Rai

Counsel for Respondent :- C.S.C., J.H. Khan, W.H. Khan

WITH

Case :- WRIT - C No. - 29673 of 2007

Petitioner :- M/S Vardhaman Industries

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Seema Agrawal, Mayank Agrawal

Counsel for Respondent :- A.S.G.I., A.N. Singh, H.P. Dube

WITH

Case :- WRIT - C No. - 34247 of 2006

Petitioner :- M/S. Sandeep Electroad Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited Thru' Its M.D.

Counsel for Petitioner :- Pramod Kumar Jain

Counsel for Respondent :- A.K. Mehrotra, S.C.

WITH

Case :- WRIT - C No. - 61389 of 2010

Petitioner :- M/S Pooja Ice Factory

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla, A. N. Singh

WITH

Case :- WRIT - C No. - 61387 of 2010

Petitioner :- M/S Aggarwal Ice Factory And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla, A. N. Singh

WITH

Case :- WRIT - C No. - 61781 of 2010

Petitioner :- M/S Ramesh Ice Factory And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla, A.N. Singh

WITH

Case :- WRIT - C No. - 30484 of 2009

Petitioner :- M/S Trikoot Iron And Steel Casting Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited & Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.N. Singh, Pankaj Kumar Shukla

WITH

Case :- WRIT - C No. - 30457 of 2009

Petitioner :- M/S Sarvottam Rolling Mills (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai, Pankaj Kumar Shukla

Counsel for Respondent :- A.N. Singh

WITH

Case :- WRIT - C No. - 30754 of 2009

Petitioner :- M/S Durga Ispat (Pvt) Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kr. Shukla, A.N. Singh

WITH

Case :- WRIT - C No. - 30753 of 2009

Petitioner :- M/S Amba Steels (A Unit Of K.P. Steel Products Ltd)

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kr. Shukla, A.N. Singh

WITH

Case :- WRIT - C No. - 30751 of 2009

Petitioner :- M/S Avadh Alloys (Pvt) Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kr. Shukla, A.N. Singh

WITH

Case :- WRIT - C No. - 52897 of 2004

Petitioner :- M/S Rathi Super Steels Ltd. Thru' Executive Director & Anr.

Respondent :- State Of U.P. Thru' Secy. Energy Deptt. & Ors.

Counsel for Petitioner :- Anubhav Trivedi, B.C. Rai

Counsel for Respondent :- C.S.C., J.H. Khan, W.H. Khan

WITH

Case :- WRIT - C No. - 39838 of 2007

Petitioner :- M/S Agrawal Ice Factory & Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- A.S.G.I., A.N. Singh, H.P. Dube

WITH

Case :- WRIT - C No. - 28491 of 2007

Petitioner :- M/S Arihant Ice Factor And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Mayank Agrawal, Seema Agarwal

Counsel for Respondent :- H.P. Dube, A.S.G.I. 2007/1162, S.C.

WITH

Case :- WRIT - C No. - 28492 of 2007

Petitioner :- M/S Arihant Textiles And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, A.S.G.I. 2007/1163, S.C.

WITH

Case :- WRIT - C No. - 51511 of 2007

Petitioner :- M/S Wings Food Industries Thru' Its Partner And Another

Respondent :- P.V.V.N. Ltd. Thru' Its Md.. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- A.S.G.I., A.N. Singh, H.P. Dube

WITH

Case :- WRIT - C No. - 619 of 2005

Petitioner :- M/S Rayana Paper Board Industries Ltd.

Respondent :- Unp. Power Corporation & Others

Counsel for Petitioner :- H.K. Misra, Vishal Dixit

Counsel for Respondent :- W.H. Khan, S.C.

WITH

Case :- WRIT - C No. - 24221 of 2005

Petitioner :- M/S Devpriya Industries Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam & Others
Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal
Counsel for Respondent :- W.H. Khan, Nripendra Mishra, S.C.

WITH

Case :- WRIT - C No. - 24225 of 2005

Petitioner :- M/S Devpriya Papers Pvt. Ltd. Thru' Director & Anr.
Respondent :- Paschimanchal Vidyut Vitran Nigam & Others
Counsel for Petitioner :- Mayank Agrawal
Counsel for Respondent :- W.H. Khan, Nripendra Mishra, S.C.

WITH

Case :- WRIT - C No. - 24228 of 2005

Petitioner :- M/S Devpriya Product Ltd. Thru' Director
Respondent :- Paschimanchal Vidyut Vitran Nigam & Others
Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal
Counsel for Respondent :- W.H. Khan, S.C.

WITH

Case :- WRIT - C No. - 31769 of 2007

Petitioner :- M/S India Ice Factory & Another
Respondent :- Paschimanchal Vidyut Vitran Nigam Limited & Others
Counsel for Petitioner :- Seema Agrawal, Mayank Agrawal
Counsel for Respondent :- A.S.G.I., H.P. Dube

WITH

Case :- WRIT - C No. - 58426 of 2005

Petitioner :- M/S Kundan Castings Pvt. Ltd.
Respondent :- U.P. Power Corporation Ltd. & Others
Counsel for Petitioner :- Bidhan Chandra Rai
Counsel for Respondent :- A.S.G.I., K.C. Sinha, W.H. Khan

WITH

Case :- WRIT - C No. - 59027 of 2005
Petitioner :- M/S Bharat Steel Rolling Mills Thru' Partner
Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Ors.
Counsel for Petitioner :- B.C. Rai
Counsel for Respondent :- A.S.G.I., W.H. Khan

WITH

Case :- WRIT - C No. - 61779 of 2010

Petitioner :- M/S Vardhaman Industries

Respondent :- Paschimanchal Vidyut Vitran Nigam And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh

WITH

Case :- WRIT - C No. - 37613 of 2009

Petitioner :- M/S Rathi Steel & Power Ltd

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh

WITH

Case :- WRIT - C No. - 30584 of 2009

Petitioner :- M/S Swarup Castings Pvt Ltd And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh

WITH

Case :- WRIT - C No. - 30580 of 2009

Petitioner :- M/S Swarup Rolling Mills Limited And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh,P.K. Shukla

WITH

Case :- WRIT - C No. - 30458 of 2009

Petitioner :- M/S Dev Concast (Pvt.) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai,Pankaj Kumar Shukla

Counsel for Respondent :- A.N. Singh

WITH

Case :- WRIT - C No. - 37663 of 2009

Petitioner :- M/S Suyash Craft And Paper Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agarwal

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh

WITH

Case :- WRIT - C No. - 31361 of 2009

Petitioner :- M/S Akashdeep Cold Storage P. Ltd. Thru' Director S.C. Gupta

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. Thru' M.D. & Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Rajesh Tripathi,A.N. Singh

WITH

Case :- WRIT - C No. - 26524 of 2009

Petitioner :- M/S Parmarth Industries (Pvt.) Limited

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And **Another**

Counsel for Petitioner :- B.C. Rai, Prateek Kumar

Counsel for Respondent :- Pankaj Kumar Shukla, A.N. Singh

WITH

Case :- WRIT - C No. - 57682 of 2005

Petitioner :- M/S Anjani Steels (Pvt.) Ltd. Thru' Director

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Ors.

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,J.H. Khan,W.H. Khan

WITH

Case :- WRIT - C No. - 57714 of 2005

Petitioner :- M/S Abhinav Steels (Pvt.) Ltd. Thru' Director

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,J.H. Khan,K.C. Sinha,Mahboob Ahmad,W.H. Khan

WITH

Case :- WRIT - C No. - 58425 of 2005

Petitioner :- M/S Sigma Castings Ltd.

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 58337 of 2005

Petitioner :- M/S Avadh Alloys (P.) Ltd.

Respondent :- U.P.P.C.L. & Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.S.G.I.,W.H. Khan

WITH

Case :- WRIT - C No. - 44352 of 2005

Petitioner :- M/S Shri Rathi Steel Limited Thru' Director & Anr.

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,S.C.

WITH

Case :- WRIT - C No. - 56776 of 2005

Petitioner :- M/S Vehlana Steels & Alloys (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Ors.

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,W.H. Khan

WITH

Case :- WRIT - C No. - 55276 of 2005

Petitioner :- Khatauli Ispat Pvt. Ltd. Thru' M.D.

Respondent :- U.P. Power Corporation Limited Thru' Chairman & Others

Counsel for Petitioner :- R.N. Pandey

Counsel for Respondent :- A.S.G.I.,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 61972 of 2005

Petitioner :- M/S Singhal Galvanizing Industries Thru' Partner

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,Amarendra Nath Singh,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 62047 of 2005

Petitioner :- M/S Printer Alloys Limited Thru' Director

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,A.N. Singh,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 65885 of 2005

Petitioner :- M/S Durga Ispat (P) Ltd. Thru' Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,A.N. Singh,K.C. Sinha

WITH

Case :- WRIT - C No. - 67140 of 2005

Petitioner :- M/S Rathi Industries Ltd. Thru' Auth. Signatory

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- B.C. Rai,Amit Shukla

Counsel for Respondent :- A.S.G.I.,A.N. Singh,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 67141 of 2005

Petitioner :- M/S Rathi Super Steels Ltd. Thru' Auth. Signatory

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- B.C. Rai,Krishna Agarwal

Counsel for Respondent :- A.S.G.I.,A.N. Singh,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 67281 of 2005

Petitioner :- M/S K.L. Rathi Steels Ltd. Thru' Auth. Signatory

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. Thru' M.D. & Others

Counsel for Petitioner :- Bidhan Chandra Rai,Anubhav Trivedi

Counsel for Respondent :- A.S.G.I.,A.N. Singh,W.H. Khan

WITH

Case :- WRIT - C No. - 67341 of 2005

Petitioner :- M/S Rana Steels Thru' Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- A.S.G.I.,A.N. Singh,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 30132 of 2007

Petitioner :- M/S Modinagar Paper Mills Ltd. & Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited & Others

Counsel for Petitioner :- Seema Agrawal,Mayank Agrawal

Counsel for Respondent :- A.S.G.I.,A.N. Singh,H.P. Dube

WITH

Case :- WRIT - C No. - 49797 of 2007

Petitioner :- M/S Singh Cold Storage And Ice Plant

Respondent :- P.V.V.N. Ltd. And Others

Counsel for Petitioner :- Manu Ghildyal,M.R.Gupta

Counsel for Respondent :- A.S.G.I.,H.P. Dube

WITH

Case :- WRIT - C No. - 49799 of 2007

Petitioner :- M/S Abhay Cold Storage Pvt. Ltd.

Respondent :- P.V.V.N. Ltd. And Others

Counsel for Petitioner :- Manu Ghildyal,M.R.Gupta

Counsel for Respondent :- A.S.G.I.,H.P. Dube

WITH

Case :- WRIT - C No. - 49791 of 2007

Petitioner :- M/S Alawalpur Cold Storage & Ice Industries Pvt. Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Manu Ghildyal,M.R.Gupta

Counsel for Respondent :- A.S.G.I.,H.P. Dube

WITH

Case :- WRIT - C No. - 49792 of 2007

Petitioner :- M/S Ghazipur Cold Storage & Factory

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Manu Ghildyal,M.R.Gupta

Counsel for Respondent :- A.S.G.I.,H.P. Dube

WITH

Case :- WRIT - C No. - 49795 of 2007

Petitioner :- M/S Kamta Prasad Cold Storage

Respondent :- P.V.V.N. Ltd. And Others

Counsel for Petitioner :- Manu Ghildyal, M.R. Gupta

Counsel for Respondent :- A.S.G.I., H.P. Dube

WITH

Case :- WRIT - C No. - 49788 of 2007

Petitioner :- Ram Lal Cold Storage

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Manu Ghildyal

Counsel for Respondent :- A.S.G.I., H.P. Dube

WITH

Case :- WRIT - C No. - 62228 of 2008

Petitioner :- M/S Olympic Zippers Ltd.

Respondent :- Managing Director, Paschimanchal Vidyut Vitran N.Ltd.& Anr.

Counsel for Petitioner :- Anoop Trivedi

Counsel for Respondent :- H.P. Dube, Pankaj Kumar Shukla

WITH

Case :- WRIT - C No. - 52596 of 2008

Petitioner :- Singhal Galvanizing Industries

Respondent :- Managing Director P.V.V.N.L. And Another

Counsel for Petitioner :- B.C. Rai, Dinesh Rai

Counsel for Respondent :- H.P. Dube

WITH

Case :- WRIT - C No. - 62234 of 2008

Petitioner :- M/S Olympic Petro Products Ltd.

Respondent :- Managing Director, Paschimanchal Vidyut Vitran Nigam & Anr.

Counsel for Petitioner :- Anoop Trivedi

Counsel for Respondent :- H.P. Dube, Pankaj Kumar Shukla

WITH

Case :- WRIT - C No. - 10753 of 2010

Petitioner :- M/S Mahashakti Cold Storage

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,Pankaj Kumar Shukla

WITH

Case :- WRIT - C No. - 26920 of 2009

Petitioner :- M/S Mantora Oil Products Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal,Vijay Singh Gaur

Counsel for Respondent :- A. N. Singh,Dharmendra Srivastava,Rajesh Tripathi

WITH

Case :- WRIT - C No. - 52911 of 2010

Petitioner :- Singhal Galvanizing Industries

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh,S.C.

WITH

Case :- WRIT - C No. - 51608 of 2010

Petitioner :- M/S Shri Satguru Metalloys (P.) Ltd.

Respondent :- P.V.V.N.L. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Pankaj Kumar Shukla,A.N. Singh

WITH

Case :- WRIT - C No. - 19564 of 2010

Petitioner :- M/S. Kothiwal Ice & Cold Storage Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam & Ors.

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh,Rajesh Tripathi,S.C.

WITH

Case :- WRIT - C No. - 19566 of 2010

Petitioner :- M/S. Agarwal Cold Storage & Ice Factory
Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.
Counsel for Petitioner :- Mayank Agrawal
Counsel for Respondent :- Rajesh Tripathi,A.N. Singh,Rajesh Tripathi

WITH

Case :- WRIT - C No. - 30755 of 2009

Petitioner :- M/S Amba Steels (A Unit Of K.P. Steel Products Ltd)
Respondent :- Paschimanchal Vidyut Vitran Nigam Limited And Others
Counsel for Petitioner :- B.C. Rai
Counsel for Respondent :- Pankaj Kr. Shukla,A.N. Singh

WITH

Case :- WRIT - C No. - 32366 of 2009

Petitioner :- Lakshmi Oil And Vanaspati Pvt. Ltd.
Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others
Counsel for Petitioner :- Ashwani Mishra
Counsel for Respondent :- Rajesh Tripathi,Dharmendra
Srivastava,Dharmendra Srivastava

WITH

Case :- WRIT - C No. - 38965 of 2009

Petitioner :- M. Aristo Gram Udyog And Another
Respondent :- U.P. Power Corporation Ltd. And Others
Counsel for Petitioner :- S.M.G. Asghar
Counsel for Respondent :- A.S.G.I.,Pankaj Kumar Shukla

WITH

Case :- WRIT - C No. - 48280 of 2006

Petitioner :- Durga Ispat Pvt. Limited
Respondent :- U.P. Power Corporation Limited And Others
Counsel for Petitioner :- Bidhan Chandra Rai
Counsel for Respondent :- Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,H.P.
Dubey,S.C.

WITH

Case :- WRIT - C No. - 48543 of 2006

Petitioner :- Amba Steels
Respondent :- U.P.P.C.L. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,H.P.
Dubey,K.C.Misra,S.C.

WITH

Case :- WRIT - C No. - 48569 of 2006

Petitioner :- Amba Steels

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,H.P.
Dubey,S.C.

WITH

Case :- WRIT - C No. - 52000 of 2006

Petitioner :- Avadh Alloys (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,H.P.
Dubey,S.C.

WITH

Case :- WRIT - C No. - 61782 of 2008

Petitioner :- M/S Sumit Agro Products Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Mayank Agrawal,Seema Agrawal

Counsel for Respondent :- H.P. Dube,Pankaj Kumar Shukla

WITH

Case :- WRIT - C No. - 58456 of 2006

Petitioner :- Bharat Steel Rolling Mills

Respondent :- U.P. Power Corporation Limited And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,H.P.
Dubey,Ved Prakash

WITH

Case :- WRIT - C No. - 53238 of 2006

Petitioner :- Bharat Steel Rolling Mills Unit-2

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,H.P. Dubey

WITH

Case :- WRIT - C No. - 53046 of 2004

Petitioner :- M/S Vehlana Steels & Alloys (P) Ltd. Thru' Director

Respondent :- U.P.P.C.L. Thru' Chairman & Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- W.H. Khan,J.H.Khan,S.C.

WITH

Case :- WRIT - C No. - 61770 of 2005

Petitioner :- M/S Premeir Ispat (Pvt.) Ltd. Thru' Director Amit Jain

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- S.S.C.,A.N. Singh,W.H. Khan

WITH

Case :- WRIT - C No. - 66722 of 2005

Petitioner :- Aristo Gram Udyog Thru' Secy. Usman Khan & Another

Respondent :- U.P. Power Corporation Limited Thru' Chairman & Others

Counsel for Petitioner :- V.M. Zaidi

Counsel for Respondent :- A.S.G.I.,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 43757 of 2014

Petitioner :- M/S Prime Pulp & Paper Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitaran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Jagdish Prasad Mishra

Counsel for Respondent :- A.K. Saxena,A.N.Singh,A.K. Saxena

WITH

Case :- WRIT - C No. - 43770 of 2015

Petitioner :- M/S Dayachand Engineering India Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.K. Saxena,A.N. Singh,S.C.

WITH

Case :- WRIT - C No. - 45438 of 2015

Petitioner :- M/S Silverton Pulp And Papers Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Mayank Agarwal

Counsel for Respondent :- A.K. Saxena,S.C.

WITH

Case :- WRIT - C No. - 44732 of 2015

Petitioner :- M/S Ariso Craft Papers Pvt. Ltd. Thru' Its Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh,A.K. Saxena,S.C.

WITH

Case :- WRIT - C No. - 34994 of 2013

Petitioner :- M/S Sumiti Alloys Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal,Ankit Kumar Gaur

Counsel for Respondent :- A.N. Sigh,Chandan Agrawal,S.C.

WITH

Case :- WRIT - C No. - 35004 of 2013

Petitioner :- M/S Amritvarsha Industries

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal,Ankit Kumar Gaur

Counsel for Respondent :- A.N. Sigh,Chandan Agrawal,S.C.

WITH

Case :- WRIT - C No. - 35159 of 2013

Petitioner :- M/S Bhawani Roller Flour Mills Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal,Ankit Kumar Gaur

Counsel for Respondent :- A.N. Singh,Chandan Agarwal,S.C.

WITH

Case :- WRIT - C No. - 35305 of 2013

Petitioner :- M/S Suchi Paper Mills Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Kumar Gaur

Counsel for Respondent :- A.N. Singh, Chandan Agarwal, S.C.

WITH

Case :- WRIT - C No. - 35396 of 2013

Petitioner :- Devi Das Ram Das Cold Storage And 4 Others

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., A.L. Yadav

WITH

Case :- WRIT - C No. - 35397 of 2013

Petitioner :- Singhal Cold Storage And Alloyd Industries And 4 Others

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., A.L. Yadav

WITH

Case :- WRIT - C No. - 35399 of 2013

Petitioner :- S.B. Ice & Cold Storage And 4 Others

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., A.L. Yadav

WITH

Case :- WRIT - C No. - 34868 of 2013

Petitioner :- M/S Sterling Machine Tools

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., A.L. Yadav

WITH

Case :- WRIT - C No. - 34862 of 2013

Petitioner :- M/S Ambika Polytubes And 5 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., A.L. Yadav

WITH

Case :- WRIT - C No. - 46751 of 2013

Petitioner :- M/S Baba Cold Storage

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 46848 of 2013

Petitioner :- Bhole Baba Ice And Cold Storage Pvt. Ltd. And 4 Ors.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agrawal, Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 46849 of 2013

Petitioner :- Goyal Metal Industries And 2 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Agrawal, Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 32006 of 2016

Petitioner :- M/S Bihariji Containers Pvt. Ltd.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Sourabh Pathak

Counsel for Respondent :- C.S.C., A.N. Singh, Nripendra Mishra

WITH

Case :- WRIT - C No. - 67682 of 2015

Petitioner :- M/S Mahaveer Udyog And 2 Others

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Nipun Singh

Counsel for Respondent :- Awadhesh Kumar Saxena, Awadhesh Kumar Saxena, S.C.

WITH

Case :- WRIT - C No. - 63326 of 2015

Petitioner :- M/S J.S. Jain Agro Industries Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Anr.

Counsel for Petitioner :- Nipun Singh

Counsel for Respondent :- Awadhesh Kumar Saxena, Awadhesh Kumar Saxena, Nripendra Mishra

WITH

Case :- WRIT - C No. - 33733 of 2014

Petitioner :- M/S White Metallic Thru' Auth. Signatory Manoj Kumar

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Chandan Agrawal

WITH

Case :- WRIT - C No. - 33464 of 2014

Petitioner :- M/S The Bahabir Jute Mills Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Mahboob Ahmad

WITH

Case :- WRIT - C No. - 30363 of 2014

Petitioner :- M/S. Galaxy Papers Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam And 2 Ors.

Counsel for Petitioner :- Vinay Sharma, A.N. Singh

Counsel for Respondent :- Nripendra Mishra

WITH

Case :- WRIT - C No. - 33736 of 2014

Petitioner :- M/S Vinayak Rathi Rolling Mills Pvt. Ltd. Thru' Auth. Sign.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Nripendra Mishra

WITH

Case :- WRIT - C No. - 33734 of 2014

Petitioner :- M/S Shri Rathi Steel Limited Thru' Auth. Sign. Manoj

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Chandan Agrawal

WITH

Case :- WRIT - C No. - 30987 of 2014

Petitioner :- M/S Omar Cold Storage Pvt. Ltd.

Respondent :- Madhyanchal Vidut Vitran Nigam Ltd. And 2 Ors

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shivam Yadav, A.N. Singh

WITH

Case :- WRIT - C No. - 29564 of 2014

Petitioner :- M/S Jai Hanuman Rice Mill Thru' Auth. Sign. B.K. Omar

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi, A.N. Singh

WITH

Case :- WRIT - C No. - 29265 of 2014

Petitioner :- M/S Silverton Pulp & Papers Pvt. Ltd. Thru' Auth. Sign.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Nripendra Mishra, A.N. Singh

WITH

Case :- WRIT - C No. - 28910 of 2014

Petitioner :- M/S Chandrayan Cold Storage Thru' Director A.K. Chandel

Respondent :- U.P. Power Corporation Ltd. & 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 26315 of 2008

Petitioner :- M/S Taj Paper Pvt Ltd And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd And Others

Counsel for Petitioner :- Seema Agrawal, Mayank Agrawal

Counsel for Respondent :- A.N. Singh, H.P. Dube

WITH

Case :- WRIT - C No. - 25088 of 2014

Petitioner :- M/S Kumar Casting Pvt.Limited
Respondent :- U.P.Power Corporation Ltd. And 4 Others
Counsel for Petitioner :- Ranjit Saxena
Counsel for Respondent :- C.S.C.,A.S.G.I.-2014/9499,Nripendra Mishra

WITH

Case :- WRIT - C No. - 67346 of 2005

Petitioner :- M/S Bharat Steel Rolling Mills
Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.
Counsel for Petitioner :- Bidhan Chandra Rai
Counsel for Respondent :- A.S.G.I.,A.N. Singh,K.C. Sinha,W.H. Khan

WITH

Case :- WRIT - C No. - 43171 of 2008

Petitioner :- M/S Vehlana Steels & Alloys Pvt. Ltd. And Another
Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others
Counsel for Petitioner :- Mayank Agrawal,Seema Agrawal
Counsel for Respondent :- H.P. Dube,SC,Shobit Dubey

WITH

Case :- WRIT - C No. - 69598 of 2013

Petitioner :- M/S Narendra Steel
Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others
Counsel for Petitioner :- Mayank Agrawal
Counsel for Respondent :- Nripendra Mishra,A.N. Singh,S.C.

WITH

Case :- WRIT - C No. - 44757 of 2008

Petitioner :- M/S Sri Satguru Rolling Mills Pvt. Ltd. And Another
Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others
Counsel for Petitioner :- Mayank Agrawal,Seema Agrawal
Counsel for Respondent :- A.N. Singh,H.P. Dube

WITH

Case :- WRIT - C No. - 25604 of 2007

Petitioner :- M/S Baba Alloys Pvt. Ltd. And Another
Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Another
Counsel for Petitioner :- Seema Agrawal,Mayank Agrawal
Counsel for Respondent :- H.P. Dube

WITH

Case :- WRIT - C No. - 32059 of 2014

Petitioner :- M/S Sparsh Industries Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi, A.N. Singh

WITH

Case :- WRIT - C No. - 44549 of 2016

Petitioner :- M/S U.S.M. Alloys & Castings Pvt. Ltd.

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sourabh Pathak

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Chandan Agarwal

WITH

Case :- WRIT - C No. - 55137 of 2016

Petitioner :- M/S Bab Ice And Cold Storage

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

WITH

Case :- WRIT - C No. - 2275 of 2017

Petitioner :- M/S S.R. Cold Storage Unit-I And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

AND

Case :- WRIT - C No. - 3472 of 2017

Petitioner :- M/S S.R. Preservation Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip B Bhosale, Chief Justice

Hon'ble Yashwant Varma, J

(Per Dilip B Bhosale, CJ)

This bunch of writ petitions, under Article 226 of the Constitution of

India, challenge demand notices issued by Distribution Companies, through its Executive Engineers, whereby the petitioners are directed to/required to deposit additional security for supply of electricity, with the warning that if the payment of security is not made within the stipulated time, appropriate action would be taken in accordance with law. The petitions also challenge the provisions contained in clause (l) of Para 4.20 of the Electricity Supply Code, 2005 (for short, 'Supply Code, 2005') insofar as it provides 'as and when a distribution licensee provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003 (for short, 'Act, 2003'). It appears that in most of the writ petitions, this Court has granted interim orders in favour of the petitioners. Since the questions raised in the writ petitions are similar, the entire bunch of petitions is being disposed of by this common judgment.

In order to understand, appreciate and consider the controversy, it would be appropriate to state the facts in Writ Petition No. 30898 of 2016, to the extent they are necessary for our purpose. The petitioner – company, registered under the Companies Act, 1956, is an industrial unit, engaged in the manufacture of craft paper, mill-board, grey board, duplex board, copying and packaging paper. It is a consumer within the meaning of clause (15) of Section 2 of the Act, 2003, which draws electricity from respondent no.3 – Purvanchal Vidyut Vitran Nigam Limited, a State Power Distribution Company. The petitioners in all writ petitions consume high volume of electricity and are classified as High Tension (for short, 'HT') consumers. The petitioner – company got an electricity connection for which they had deposited a sum of Rs. 53,28,300/- towards security. According to petitioner,

respondent no.4 - Executive Engineer, Electricity Urban Distribution Division, of respondent No. 3 – State Power Distribution Company, in purported exercise of the powers under circular dated 07.03.1994 and the Supply Code, 2005, issued a demand notice dated 09.06.2016, for the financial year 2015-16, to pay a total security amount of Rs. 87,40,891. After adjusting the amount that was already paid, the petitioner was directed to pay the difference of the amount, i.e. Rs. 34,12,597/-. Such demand notices forced all the petitioners-HT consumers, to file writ petitions not only challenging the demand notices but also the provisions of clause (l) of Para 4.20 of the Supply Code, 2005 being ultra vires the provisions of sub-section (5) of Section 47 of the Act, 2003.

The petitioner claims, as provided for under Section 47(5) of Act, 2003, that it has already informed the respondent no.4 – Executive Engineer to install prepaid meters vide letter dated 21.04.2016 and in view thereof, no security, as contemplated by sub-section (1) of Section 47, is liable to be paid. On this ground alone, the impugned demand according to the petitioner is illegal. The petitioners have not challenged their liability to deposit security as such and what they have challenged is the impugned demand for additional security for supply of electricity. Similar are the facts and circumstances against which the petitioners in all other writ petitions have approached this Court, raising similar challenge after having received demand notices issued by the respective State Power Distribution Companies, and for uninterrupted electrical energy being supplied to them without providing prepaid meters under Section 47 (5) of the Act, 2003.

The provisions of clause (l) of Para 4.20 of the Supply Code, 2005,

which is under challenge, provides that a distribution licensee shall not be entitled to require security in pursuance of sub-section (1) of Section 47 of the Act, 2003, if the person requiring the supply is prepared to take the supply through a prepaid meter, “as and when distribution licensee provides a choice to consumer to opt for supply through prepaid meter”. This clause was inserted vide notification No. UPERC/Secy/Regulation/Supply Code/2006-517 dated 11.08.2006. This provision, according to the petitioner, is ultra vires the provisions contained in sub-section (5) of Section 47 of the Act, 2003.

It would be relevant and necessary, in order to appreciate and deal with the challenge, to reproduce Section 47 which reads thus:

“47. Power to require security.- (1) Subject to the provisions of this section, a distribution licensee may require any person, who requires a supply of electricity in pursuance of Section 43, to give him reasonable security, as may be determined by regulations, for the payment to him of all monies which may become due to him—

(a) in respect of the electricity supplied to such person; or

(b) where any electric line or electrical plant or electric meter is to be provided for supplying electricity to such person, in respect of the provision of such line or plant or meter,

and if that person fails to give such security, the distribution licensee may, if he thinks fit, refuse to give the supply of electricity or to provide the line or plant or meter for the period during which the failure continues.

(2) Where any person has not given such security as is mentioned in sub-section (1) or the security given by any person has become invalid or insufficient, the distribution licensee may, by notice, require that person, within thirty days after the service of the notice, to give him

reasonable security for the payment of all monies which may become due to him in respect of the supply of electricity or provision of such line or plant or meter.

(3) If the person referred to in sub-section (2) fails to give such security, the distribution licensee may, if he thinks fit, discontinue the supply of electricity for the period during which the failure continues.

(4) The distribution licensee shall pay interest equivalent to the bank rate or more, as may be specified by the concerned State Commission, on the security referred to in sub-section (1) and refund such security on the request of the person who gave such security.

(5) A distribution licensee shall not be entitled to require security in pursuance of clause (a) of sub-section (1) if the person requiring the supply is prepared to take the supply through a pre-payment meter.”

(emphasis supplied)

A plain reading of sub-section (5) of Section 47 shows that a distribution licensee shall not be entitled to require security in pursuance of clause (a) of sub-section (1), if the person requiring the supply is prepared to take the supply through a prepaid meter. In view of the language employed in Section 47, in particular sub-section (1) and sub-section (5) thereof, and the language used in clause (l) of Para 4.20 of the Supply Code, 2005, the petitioners contend that since they have opted for supply of electricity through prepaid meters, it is mandatory for the licensee, namely respondent no.3 – distribution company within the meaning of Section 14 of the Act, 2003, to provide and supply electricity through prepaid meters and the licensee cannot insist upon HT consumers to furnish security deposit/revised security deposit on the ground of increase in consumption of electricity and such action of the power distribution company is ex-facie illegal and

contrary to the statutory mandate. In short, they contend, it is illegal to insist upon the deposit of the differential amount of security on the ground of increase in consumption of electricity if the request of HT consumers for installation of prepaid meter is pending. They also contend that Section 47 (5) casts a duty on the licensee to secure prepaid meters and provide the same to HT consumers. They are denuded of the power to demand a security deposit once a request is made by the consumers for installation of prepaid meters.

Thus, the question that falls for our consideration is whether it is mandatory for a licensee to provide prepaid meters the moment such a request is made by the HT consumer, as provided for under Section 47(5) of Act, 2003 and/or whether it is open to a HT consumers to claim exemption from payment of additional security deposit as contemplated by sub-section (2) of Section 47 on the ground that their request for installation of a pre-payment meters is pending. We would also like to consider the question whether the provisions contained in clause (l) of Para 4.20 of Supply Code, 2005, is ultra vires the provisions contained in sub-section (5) of Section 47 of the Act, 2003.

The petitioners are, admittedly, consumers as defined under sub-section (15) of Section 2, which means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under the Act or any other law for the time being in force and includes any person whose premises are, for the time being, connected for the purpose of receiving electricity with the works of a licensee, the Government or such

other person, as the case may be. Sub-section (17) of Section 2 defines a 'distribution licensee' to mean a licensee authorised to operate and maintain a distribution system for supplying electricity to the consumers in his area of supply.

In the State of Uttar Pradesh, there are four distribution companies, namely, Paschimanchal Vidyut Vitran Nigam Limited, Poorvanchal Vidyut Vitran Nigam Limited, Dakshinanchal Vidyut Vitran Nigam Limited and Madhyanchal Vidyut Vitran Nigam Limited, which have deemed licensee status in accordance with fifth proviso to Section 14 of the Act, 2003. Before these distribution licensees came into existence, it appears that in pursuance of Section 131 (4) of the Act, 2003 and sub-section 4 (23) of the U.P. Electricity Reforms Act, 1999 (for short, 'Reforms Act'), the Uttar Pradesh Power Sector Reforms (Transfer of Distribution Undertakings) Scheme, 2003 was effected on 12 August 2003, wherein the U.P. Power Corporation Limited, i.e. one of the aforesaid distribution licensees was broken into the above four distribution companies. Under the Reforms Act, the U.P. Electricity Regulatory Commission (for short, 'Commission') was assigned the functions to regulate the distribution, supply, utilization of electricity, issue licenses to regulate the working of licensees and to set the standards of services for the consumers as well as standards for the electricity industry in the State. While granting licenses to the then three major licensees, namely, Uttar Pradesh Power Corporation Limited (UPPCL), Kanpur Electricity Supply Company Limited (KESCO) and Noida Power Company Limited (NPCL), the Commission required that the licensees should prepare distribution codes and submit them to the Commission for approval, as a

condition of the supply licence. In pursuance to the Commission's direction, UPPCL had submitted a draft distribution code which was approved by the Commission and was made applicable in areas served by all three companies with effect from 1 July 2002. The Act, 2003 was made applicable on 9 June 2003, as a self-contained comprehensive legislation, which replaced the existing legislations while preserving their core features. As seen earlier, Section 14 of the Act, 2003, provides that any supply licensee under the Reforms Act shall be deemed to be a licensee under the Act, 2003 for such period as stipulated in the licence and the provisions of the Reforms Act in respect of such licence shall apply for one year from the date of commencement of the Act, 2003, i.e. up to 9 June 2004 in the absence of any earlier period specified by the Commission, which was not done in the present case. Therefore, provisions of the Supply Code, 2002 continued to operate on the above four distribution companies also till 9 June 2004, as condition of licence. Subsequent to 9 June 2004, only the provisions of the Reforms Act and accordingly the Supply Code, 2002 applied with respect to above supply licensees, which were not inconsistent with the provisions of the Act, 2003 alongwith general application of Section 6 of the General Clauses Act, 1897, with regard to the effect of repeals.

The Electricity Supply Code, 2005 has been notified in accordance with Sections 176 and 183 of the Act, 2003 and all other enabling powers in this behalf. The Supply Code, 2005 is applicable to all distribution licensees in their respective licensed areas in the State. The Code enlists obligations of the licensee and consumers vis-a-vis each other and specifies the set of practices to provide efficient, cost-effective and consumer friendly service to

the consumers. It, inter-alia, deals with the procedure for new connection and for enhancement or reduction of load; recovery of electricity charges and intervals for billing of electricity charges; disconnection, re-connection and restoration of supply of electricity; tampering, distress or damage to electrical plant, electric lines or meter; entry of distribution licensee or any person acting on his behalf for disconnecting supply and removing the meter and/or for replacing, altering or maintaining electric lines or electrical plant or meter; practices relating to payment of bills, consumer metering and assessment of energy; standards of performance for the licensee, and procedure for redressal of consumer grievances. Supply Code being very exhaustive and covering all fields, it appears and contended on behalf of the respondents, no need was felt to frame regulations, as contemplated under Section 47 of the Act, 2003. Para 4.20 of the Supply Code, 2005 provides for security deposit. We are concerned with clause (l) thereof, which provides that a distribution licensee shall not be entitled to require security in pursuance of this section, if the person requiring the supply is prepared to take the supply through a prepaid meter, as and when distribution licensee provides a choice to consumer to opt for supply through prepaid meters.

The respondent – distribution company has filed a counter affidavit opposing the prayers made in the writ petition. They have stated in detail, the background against which they raised the impugned demand for the financial year 2015-16. The act of making such a demand in the face of the provisions of Section 47(5) of Act, 2003 is under challenge in this group of petitions. Since the amount mentioned in the demand notice is not in dispute, we are not entering into the fact as how the amount mentioned in

the impugned demand notice is arrived at. It is specifically stated by respondent no.4 that according to the agreement entered into between them and the petitioners, the petitioners are bound by all the terms and conditions of Supply Code, 2005 and as provided for in Para 4.20 of Supply Code, 2005, a consumer can only apply for a prepaid meter as and when a distribution licensee provides a choice to a consumer to opt for supply through prepaid meters. In other words, it is stated that a person can apply or opt for a prepaid meter only when such meters are made available by the distribution licensee and not otherwise. They have also specifically stated that prepaid meters for HT consumers are neither manufactured in India nor available for installation, as contemplated by sub-section (5) of Section 47 of Act, 2003. The petitioners, in their reply to the counter affidavit, after referring to Sections 55, 73, 177 and Section 47 of Act, 2003, have stated that a distribution licensee is not entitled to demand any security if the person requiring supply is prepared to take supply through prepaid meter. They have tried to justify their challenge to the demand notices and the provisions contained in Para 4.20 of the Supply Code, 2005. They have not controverted the statement on affidavit made by the respondents that HT meters are available to be installed at the request of consumers under sub-section (5) of Section 47 of the Act, 2003.

We have heard learned counsel for the parties and have gone through the entire material placed before the Court, in particular the provisions of the Act, 2003 and the Supply Code, 2005. We do not propose to make a reference to every individual provision contained either in the Act, 2003 or in the Supply Code, 2005, since that may not be necessary for addressing the

questions formulated by us. It is clear from the scheme of the Act, that it recognizes the fact that electricity is an essential service and that the demand is more than the supply and there is larger public interest in ensuring proper distribution of electricity. Cumulative reading of all the provisions in the Act, 2003, in particular Part VI thereof with which we are mainly concerned, shows the intent of Parliament, namely the establishment of an efficient supply network to every nook and corner of the country so that electricity is available to all on demand. The Act mandates supply of electricity on demand by the consumer. Efficient supply of electricity pre-supposes the financial viability of the licensee. The distribution licensee draws electricity from the generator on payment of costs levied by the generator. It puts in place and establishes all the infrastructure facilities for drawing electricity from the generators and supplies the same to the end user. The consumer can request for supply of electricity from the licensee and once such a request is made, subject to fulfillment of all legal requirements, electricity has to be supplied and various provisions of the Act and Regulations made there under would govern the relationship between the licensee and the consumer. However, it is purely a commercial transaction between the licensee and consumer. When a supplier agrees to supply electricity, it is permissible for the supplier to impose restrictions subject of course to the various provisions of the Act and the Regulations. In short, Part VI of the Act deals with the supply of electricity and the competency of the distribution licensee to demand amounts from consumers for various purposes including demand of security. This Chapter vests power in the distribution licensee to levy charges for the electricity supplied, to recover charges incurred and to

demand a security deposit for the electricity supplied. Electricity is not a free commodity. It requires to be purchased from the generator and the consumer has to pay for what he consumes. From out of the charges levied on the consumer, the licensee generates revenue. Ordinarily, whenever any person purchases a commodity, he has to pay the value thereof upfront. Insofar as electricity supply is concerned, the licensee supplies electricity on credit basis and assesses the electricity consumed during the given period and recovers the charges. The distribution companies ordinarily extend one month credit period and by statutory fiat, the consumer gets one more month to pay the amount for the electricity consumed. In the post-consumption pay system, the licensee runs the risk of recovery of his dues and has to go through rigorous legal procedures. The stark reality is, that there are innumerable defaulters. Delay in payment may choke the licensee and can paralyze the electricity distribution system. Thus, to safeguard his interest and in the larger public interest, licensee can demand security deposit for the electricity supplied. Section 47 recognizes this right in no uncertain terms.

Section 47 of the Act, 2003 empowers a distribution licensee requiring any person, who seeks a supply of electricity in pursuance of Section 43, to give him reasonable security, as may be determined by regulations. It also empowers the distribution licensee to refuse to give the supply of electricity or to provide the line or plant or meter for the period during which the person, requiring a supply of electricity, fails to give such security. We are not referring to Section 47 in detail, since it has already been reproduced in the earlier part of the judgment. Sub-section (5) of Section 47, however, requires special attention since it carves out an exception to the provisions

contained in Section 47 (1) to (4) and so as to understand the intent of the legislature in carving out such an exception. Section 43, for our purpose, provides that a licensee, shall on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application.

Section 55 of the Act, 2003 also needs special mention, which deals with the use, etc., of meters. Providing of a correct meter in accordance with the regulations to be made in that behalf, is the obligation of the licensee who may require the consumer to give security for the price of a meter and enter into an agreement for the hire thereof, unless the consumer elects to purchase a meter. Installation of a meter is necessary for proper accounting and audit in the generation, transmission and distribution or trading of electricity. The Central Electricity Authority, referred to in sub-section (1) of Section 70, is obliged to direct installation of meters by a generating company or licensee at such stages of generation, transmission or distribution or trading of electricity and at such locations of generation, transmission or distribution or trading, as it may deem necessary. This provision further provides that if a person makes default in complying with the provisions made in that behalf in this section or the regulations made under sub-section (1), the Appropriate Commission may make such order as it thinks fit for requiring the default to be made good by the generating company or licensee or by any officers of a company or other association or any other person who is responsible for its default.

From a perusal of Sections 47 and 55 of the Act, 2003, it is clear that supply of electricity is distinct from providing of a meter. Provisions of

Section 55, which deal with the use of meters, only enables the supplier to know how much electricity is consumed by a consumer in a block period and based on the consumption recorded, as per the tariff already determined, collect the consumption charges from the consumer. It also enables the consumer to know the amount of electricity consumed by him. It is not in dispute that electric meters are provided. As per the consumer system prevailing, electricity is supplied through ordinary meters and consumption charges are levied and collected based on the electricity consumed during the block period. Section 55 imposes a mandate on the licensee to supply electricity through installation of “a correct meter”. This provision does not provide for prepaid meters but only obliges to provide a correct meter. This is only to ensure that there is proper accounting and auditing of distribution of electricity.

It is true that sub-section (5) of Section 47 provides that a distribution licensee shall not be entitled to require security in pursuance of clause (a) of sub-section (1), if the person requiring the supply is prepared to take the supply through a prepaid meter. This, by itself, does not mandate or make it obligatory for a distribution licensee to provide such a meter the moment it is requested for or demanded by the consumer. From a plain reading of sub-section (5) of Section 47, it is clear that it gives an option to the consumer to opt for a prepaid meter and does not mandate or obligate a distribution licensee to install/provide the same and not to make any demand of the security referred to in sub-section (1) of Section 47 and refund such security on the request of a person who gave such security the moment the consumer makes a request or opts for a pre-payment meter, irrespective of the fact as

to whether such a meter is available or till it is installed. The provision in sub-section (5) of Section 47 has to be read and understood to mean that if prepaid meters for HT consumption are available with the licensee or in the market and the consumer requests for supply of electricity through prepaid meters, the licensee has to provide meters and in such a case, a licensee cannot refuse to provide the meter and demand for security deposit. Provisions contained in sub-section (5) of Section 47 should be read in conjunction with all other provisions of the Act, in particular Section 55. Availability of efficient prepaid meters is a sine que non for enforcing this provision.

We would also like to consider the words 'subject to' in sub-section (1) of Section 47 of the Act, 2003 and so also the word 'prepared' in sub-section (5) thereof. The submission made on behalf of the petitioners that the words 'subject to' is a clear indication that the provisions of sub-sections (1) and (2) would be subservient to Section 5, and that the provisions of sub-section (5) would not control but also override the provisions of sub-sections (1) and (2), in our opinion, deserves to be rejected outright. Learned counsel appearing for the petitioners, in support of these submissions, relied upon the principles enunciated by the Supreme Court in **Commissioner of Central Excise, Bhavnagar Vs Saurashtra Chemicals Ltd, (2007) 10 SCC 352** and **United India Insurance Co Ltd Vs Lehu & Ors, (2003) 3 SCC 338**.

Firstly, the words “**subject to**” are used in sub-section (1) to mandate that the reasonable security which a distribution licensee would be entitled to demand would have to be determined in accordance with the provisions of

Section 47. In fact, the words used are "*subject to the provisions of this section*" and not "*subject to the provisions of sub section (5)*". This is a clear indication of the legislative intent that the formulation and determination of security would have to be made in accordance with the provisions of Section 47 read as a whole. It becomes relevant to note that sub-sections (1) and (2) are not made subject to the provisions of sub-section (5). We may also note that in **Saurashtra Chemicals**, a judgment relied upon by the learned counsel for the petitioner, the Supreme Court had referred to the manner in which the expression "**subject to**" had been defined by the Black's Law Dictionary. We extract paragraph 13, which reads as under:

"13. A beneficent statute may have to be considered liberally but where a statute does not admit of more than one interpretation, literal interpretation must be resorted to. The provision allows taking of credit but the same is circumscribed by the condition as is apparent from the use of the words "subject to" and is limited to an amount not exceeding 50% of the duty paid on such capital goods. The term "subject to" in the context assumes some importance. In *Ashok Leyland Ltd. v. State of T.N.*¹ this Court held: (SCC p. 36, para 79)

" 79. ... 'Subject to' is an expression whereby limitation is expressed. The order is conclusive for all purposes."

This Court further noticed the dictionary meaning of "subject to" stating: (SCC p. 38, paras 92-93)

"92. Furthermore, the expression 'subject to' must be given effect to.

93. In Black's Law Dictionary, 5th Edn. at p. 1278, the expression 'Subject to' has been defined as under :

'Liable, subordinate, subservient, inferior, obedient to; governed or affected by;

¹ (2004) 3 SCC 1

provided that; provided; answerable for.
Homan v. Employers Reinsurance
*Corp.*²

(See also *S.N. Chandrashekar v. State of Karnataka*³.)”

As would be evident from the meaning ascribed to the said expression, it is defined to also mean “governed or affected by” and “provided”. This, in our considered view, is in accord with what we have held herein above, namely, that the use of the expression “**subject to**” was primarily to underline the legislative intent that the fixation of reasonable security would have to be determined under the canopy of section 47 as a whole.

The word 'prepared' in sub-section (5), according to the petitioners, is clearly indicative of the preparedness of the consumer to take the supply as being the crucial factor for determining whether additional security was liable to be demanded or not. It was further contended that as long as the consumer was prepared to take the supply through a pre payment meter, no other consideration was relevant and, as a consequence of such an option being exercised by the consumer, the distribution licensee stood denuded of the jurisdiction and authority to demand or require security. This submission is not liable to be countenanced at all as we have already held that the *sine qua non* for the applicability of sub-section (5) is the availability of efficient prepayment meters. We have already noted the uncontroverted and admitted state of fact that prepayment meters for HT consumers are not available. In view thereof, the mere preparedness of the consumer to obtain supply through a pre payment meter is of no consequence. In fact, as one reads sub-

² 345 Mo 650 : 136 SW 2d 289, 302

³ (2006) 3 SCC 208

section (5), it is more than apparent that the preparedness of the consumer is itself dependent upon the availability of prepayment meters. Since admittedly, pre payment meters are not available insofar as HT consumers are concerned, this submission of the petitioners is also liable to fail.

Next we would like to consider the submission that the reasonable security which a distribution licensee was entitled to demand from consumer was to be determined by regulation, based upon the use of the expression “as may be determined by regulation” in sub-section (1) of Section 47. In support of this submission, it was further urged that Section 181, which empowers the State Commission to frame regulations, itself has hedged by the use of the phrase “to carry out the provisions of the Act”. Relying upon the principles enunciated in **Chandra Kumar Shah & Anr Vs The District Judge & Ors, AIR 1976 (All) 328** and **Bharathidasan University & Anr Vs All-India Council for Technical Education & Ors, (2001) 8 SCC 676**, it was further submitted that power to frame such regulations or rules could not be read as being a source of authority to enact independent legislation or to impose obligations which were not otherwise envisaged by the Act. This contention was presumably raised and urged with reference to Clause 4.20 of the Supply Code, 2005. In our opinion, we need not examine this contention in detail for more than one reason. Firstly, as stated earlier, Supply Code, 2005 takes care of all the situations that could be taken care by regulations and, secondly, no such challenge is raised in the writ petitions. It is pertinent to note that the petitioners do not deny their liability to give reasonable security as contemplated by Section 47. In other words, they have not challenged demand of security as contemplated under sub-section

(1) of Section 47 of the Act, 2003. Secondly, in all the writ petitions, there is no assertion to the effect that the imposition of additional security is bad or is rendered without authority of law on account of having been imposed without the framing of regulations. That apart, such a contention has been raised for the first time only in the course of oral submissions. We may also note, at the cost of repetition, that the challenge is specifically raised only to sub-clause (1) of Clause 4.20 of the Supply Code, 2005. Sub-clause (1) of the Supply Code, 2005 relates to a prohibition on a distribution licensee demanding security where a person requires the supply to be made through a pre payment meter subject to the distribution licensee providing a choice to a consumer to opt for supply through such a meter. This clearly indicates that there was no challenge to the demand of security or additional security, as observed earlier, on the ground that the State Commission has failed to frame regulations under Section 181 for the purposes of determining security. The entire challenge was based solely upon the contention that once the consumer had opted for supply through a pre payment meter, the distribution licensee consequently could not demand any security. Submission that Clause 4.20 of the Supply Code, 2005 places an additional obligation or fetter upon the right of a consumer, is also not liable to be countenanced, since the availability of pre payment meter is a prerequisite to the consumer exercising the option of obtaining supply through such a meter. We will deal with this further a little later. Clause 4.20 travels no further than the above position which evidently flows from sub-section (5). The linking of the exercise of an option by the consumer to the distribution licensee making available such meters is, therefore, not ultra vires Section

47. We proceed to record our further reasons for taking such a view insofar as Clause 4.20, to the extent it is under challenge, is concerned.

The provisions contained in clause (1) of para 4.20 of the Supply Code, 2005 is not independent of the provisions contained in Sections 47 and 55 of the Act, 2003 but it is in conjunction with these provisions of the Act. It does not independently gives any power to the distribution licensee whether to provide or not to provide prepaid meter but it only states that as and when a distribution licensee provides a choice to a consumer to opt for supply through prepaid meter, such a meter would be supplied at the request of the consumer. If the prepaid meter is not available, then the question of giving the option as contemplated by sub-section (5) of Section 47 does not arise. The language employed in sub-section (5) makes it further clear that a distribution licensee shall not be entitled to require security in pursuance of clause (a) of sub-section (1) if the person requiring the supply is prepared to take the supply through a prepaid meter. Thus, the availability and installation of a prepaid meter on the request of a consumer is necessary. Section 55 does not provide for instillation of a prepaid meter as such and it simply states that no licensee shall supply electricity except through installation of a 'correct meter' in accordance with the regulations to be made in this behalf by the Authority, i.e. Central Electricity Authority, referred to sub-section (1) of Section 70. Thus, as noticed earlier, even on a plain reading of Section 47 (5) of the Act, it cannot be said that an obligation rests on the distribution licensee to provide electricity without demanding security deposit the moment the HT consumer makes a request for supply of prepaid meter. It is not in dispute that prepaid meters are not available in the market.

Thus, this regulation only furthers the objective underlying in Section 47 (5) of the Act, 2003. We, therefore, do not find that the provisions contained in Para 4.20 (1) of the Supply Code, 2005 are ultra vires the provisions contained in Section 47 (5) of the Act, 2003. The challenge to Para 4.20 (1) deserves to be rejected outright. We also do not see any illegality in the demand of additional security deposit made by respondent no.3 – distribution company in view of the increase in consumption of power over the originally estimated quantity or based on anticipated demand for power supply for two months.

Further, we find ourselves unable to sustain the challenge to the validity of Clause 4.20 and the demand of security on an essentially fundamental ground also. The reason why sub section (5) injuncts the distribution licensee from demanding additional security is the pre-supposition of supply being made through a pre payment meter. In the case of a pre payment meter, the consumer would have already paid for the electricity that he is likely to consume. There is, therefore, no reason for the distribution licensee to demand security in such a situation. The demand of security is primarily aimed at securing the interest of the distribution licensee who has already incurred huge capital expenditure in establishing the requisite infrastructure for supply of electricity and has also paid the generating company for electricity purchased. It is to bridge the gap between the expenditure already incurred and receipt of revenue from the consumer that the distribution licensee seeks and demands security to safeguard its interest. However since in the case of a pre payment meter, the consumer pays for the electricity likely to be consumed in advance, the legislature

thought it fit to absolve such consumers from the liability to pay security. However in the absence of a pre payment meter, the consumer does not pay any moneys in advance. It is for this reason that the demand of security in such a case is clearly justified and does not fall foul of the provisions of the Act.

We at the cost of repetition further note that none of the petitioners neither challenged the quantum of additional security demanded by the distribution licensees nor did they urge any other contention in support of their challenge to either the validity of Clause 4.20 or the issue of supply of a pre payment meter.

As submitted by learned counsel for the respondents, as of today, prepaid meters are either not manufactured and, in any case, they are not available in the market and, therefore, the question of installation of such meters would not arise. It is not in dispute that prepaid meters are available for LT consumers and on demand said meters are provided, whereas prepaid meters with proven technology for HT consumers are not available in the market and, therefore, they cannot be provided even if demand is made. That, in any case, does not mean that till the meters are manufactured and installed, the licensee cannot demand additional security even if the consumption of electricity is increased. If, the interpretation, as is made by learned counsel for the parties is accepted, perhaps that would put the licensee and in turn the Distribution Company under great stress and in effect it may choke the licensee and paralyze the electricity distribution system. We are, therefore, of the opinion that unless prepaid meters are available for supply of electricity to HT consumers, there is no obligation on

the licensee to supply such meters. That, in our opinion, is the intent of the legislature while inserting sub-section (5) of Section 47 in the Act, 2003. We may also observe that it is high time for the licensee to take steps to procure HT pre payment meters so as to meet the demand of HT consumers.

Similar questions fell for consideration before the High Court of Judicature at Hyderabad for the States of Telangana and Andhra Pradesh in **Sarwottam Ispat Ltd Vs Southern Power Distribution Company of Telengana Ltd & Ors, 2016 (6) ALD 162**. A Division Bench, to which one of us (Dilip B Bhosale, CJ) was a Member, after considering the relevant provisions of the Act, 2003, in paragraph 34, observed thus:

“34. Section 47 (2) enables the distribution licensee to demand additional security, if the security provided by the consumer is invalid or insufficient. Sub-section (3) further vests power in the licensee to stop supply of electricity if the additional amount demanded is not paid. When this provision vests power in the licensee, a demand made by the licensee in terms thereof cannot be held as arbitrary or illegal. As long as pre-paid meters are not installed, it is mandatory for the consumers to pay the security deposit as demanded by the licensee. Therefore, waiving of security deposit merely because a request for provision of HT pre-paid meter is made when no such meters are available does not arise. Such a request is contrary to statutory scheme and liable to be rejected. It is not the case of the petitioners that the amount of deposit demanded is in excess of what is required by the tariff determined by the Regulatory Commission. They cannot insist for supply of electricity without complying with the demand for additional security deposit. Section 47 does not envisage waiver of security deposit nor prescribe alternative mode of providing security, such as bank guarantee. There is no ambiguity in the provision. Thus, there is no scope for playing in the joints to grant the relief of waiver/reduction of deposit. When the statute vests power in the licensee to demand security deposit and licensee exercises such power and no provision is made for waiver/reduction/alternative mode of providing security, it is not permissible for this Court, in exercise of equity

jurisdiction under Article 226 of the constitution of India, to direct the distribution licensee to dispense with payment of security deposit or to furnish bank guarantee or reduce the security deposit demanded. Contrary to the statutory mandate, no direction can be issued. When the language of the provision is plain, simple and clear, it is not permissible for the Court to interpret the same in different manner or issue directions contrary to the statutory mandate. No case is made out by petitioners to wave additional security deposit.”

We find ourselves in agreement with the view taken by the High Court of Judicature at Hyderabad.

Accordingly and for the reasons noted above, we find no merit in the challenge laid in this batch of writ petitions to the provisions of Clause 4.20 of the **Electricity Supply Code, 2005**, as framed by the **U P Electricity Regulatory Commission** or to the demand of additional security by the distribution licensees.

The writ petitions consequently **fail** and are **dismissed**. All interim orders granted shall in consequence stand **discharged**.

March 21, 2017
AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)